



Forthcoming judgments and decisions

The European Court of Human Rights will be notifying in writing 13 judgments on Tuesday 22 January 2019 and 48 judgments and / or decisions on Thursday 24 January 2019.

*Press releases and texts of the judgments and decisions will be available **at 10 a.m. (local time) on Tuesday 22 January and at 11 a.m. (local time) on Thursday 24 January** on the Court's Internet site (www.echr.coe.int)*

Tuesday 22 January 2019

Móry and Benc v. Slovakia (applications nos. 3912/15 and 7675/15)

The applicants, Marek Móry and Matúš Benc, are Slovak nationals who were born in 1973 and 1980 respectively and live in Horná Kráľová and Nitra respectively (both in Slovakia).

The case concerns their complaint of arbitrary pre-trial detention and insufficient compensation.

In March 2014 the Nitra District Court remanded the applicants in custody pending trial after they were arrested for insurance fraud. They appealed against the remand decision, arguing that the District Court had not relied on specific facts. The Regional Court dismissed their appeal, and they complained to the Constitutional Court, which in September 2014 found a violation of their rights.

It held in particular that even though the ordinary courts had referred to specific facts, they had failed to explain them in their decisions. It concluded that the applicants' pre-trial detention had been based on an arbitrary decision lacking proper and sufficient reasoning and awarded them 1,000 euros each in compensation. The men had meanwhile been released on probation in May 2014.

Relying on Article 5 § 1 (c) (right to liberty and security) of the European Convention on Human Rights, the applicants complain that their pre-trial detention was arbitrary and that they were not given sufficient redress.

Vazquez and Calleja Delsordo v. Switzerland (no. 65048/13)

The applicants, Sergio Rivera Vazquez and Katherine Danise Calleja Delsordos, are two Mexican nationals, who were born in 1961 and 1973, and live in the USA.

The case concerns an alleged violation of the adversarial principle in proceedings before the Swiss Federal Court.

In April 2008 and July 2009 the applicants entered into agreements for the lease of houses and providing for annual rents of 83,800 and 62,800 euros (EUR). The lessor did not provide them with the statutory form for the purpose of setting the initial rent amount.

In October 2010, the applicants, represented by the Geneva Tenants' Association acting in particular through the intermediary of P.S., brought proceedings for the setting of the initial rent. The Leases and Rents Tribunal rejected the applicants' action and they appealed. That appeal was dismissed by the Leases and Rents Court, which upheld the Tribunal's decision and took the view that the applicants had committed an abuse of rights by complaining of the lessor's failure to notify the initial rent by means of an official form. The applicants vacated their tenancies in December 2012. On 21 January 2013 they lodged a civil appeal with the Federal Court, being represented by P.S. The Federal Court partly upheld the appeal and remitted the case. Moreover, it did not award them any

compensation for their own lawyer's fees, taking the view that they had not been validly represented.

Relying on Article 6 § 1 (right to a fair hearing), the applicants complain about the Federal Court's decision to deny their lawyer P.S. the capacity to act before it, without giving them an opportunity to comment on this matter and refusing to award them expenses, even though they had been partly successful.

Taşkaya and Ersoy v. Turkey (no. 72068/10)

The applicants, Ms Kader Taşkaya and Mr Tahsin Emir Ersoy, are two Turkish nationals, who were born in 1964 and 1996 and live in Istanbul. The second applicant is the son of the first. At the material time, Ms Taşkaya was practising as a lawyer. The case concerns a complaint of a breach of the right to respect for their private life on account of an article published in a daily newspaper and of the unfairness of the ensuing proceedings.

On 5 June 2006 Ms Taşkaya lodged a criminal complaint against the Consul General of Azerbaijan in Turkey. She alleged that he had threatened and insulted her and had stolen her jewellery. In July 2006 three articles were published in the daily newspaper *Hürriyet* concerning that complaint. In August 2006, the public prosecutor, considering that there was insufficient evidence, dropped the charges. In September 2006 Ms Taşkaya withdrew her appeal against the public prosecutor's decision. On 5 September 2006 the Consul General of Azerbaijan was dismissed from his post. In various newspaper articles, it was alleged that this dismissal was the result of articles and photographs concerning his alleged relationship with Ms Taşkaya. On 12 September 2006 an article about Ms Taşkaya under the heading "it's not just about the Consul" was published by the daily paper *Sabah*. The article's sub-heading was "the lawyer Kader Taşkaya, who caused the dismissal of the Consul General of Azerbaijan, is also accused, in connection with an investigation for extortion, of issuing and trying to cash forged cheques". A rectification drafted by Ms Taşkaya, disputing the allegations concerning her, was published in the newspaper.

On 10 August 2007 Ms Taşkaya brought proceedings, in her own name and on behalf of her son, for an award of damages against the author of the article and the newspaper's editor.

On 17 July 2008 the District Court delivered its judgment, taking the view that the facts reported in the article seemed to be correct. The court concluded that the article was in the public interest and that it had not infringed the applicants' personality rights. The Court of Cassation dismissed an appeal by Ms Taşkaya on points of law.

Relying on Article 8 (right to respect for private life), the applicants allege that the article breached their right to the protection of their reputation. Relying on Article 6 § 1 (right to a fair hearing), they complain that the proceedings they brought before the domestic courts were unfair.

The Court will give its rulings in writing on the following cases, some of which concern issues which have already been submitted to the Court, including excessive length of proceedings.

These rulings can be consulted from the day of their delivery on the Court's online database [HUDOC](#).

They will not appear in the press release issued on that day.

Cachia and Others v. Malta (no. 72486/14)

Gorea v. the Republic of Moldova (no. 63507/11)

Anankin and Others v. Russia (no. 79757/12)

B.U. and Others v. Russia (nos. 59609/17, 74677/17 and 76379/17)

Kukurkhoyeva and Others v. Russia (nos. 50556/08, 51029/08, 22667/09, 43706/09, 66394/10, 5691/11, 59117/11, 65052/11, 70640/11, and 59203/13)

Savin v. Russia (no. 58811/09)

Tazuyeva and Others v. Russia (nos. 36962/09, 37430/09, 43724/09, 35816/10, 54733/10, 24748/11, 29826/11, 34256/11, 42835/11, and 4887/14)

U.A. v. Russia (no. 12018/16)

Stojković v. Serbia (no. 24899/15)

Başar v. Turkey (no. 10015/10)

Thursday 24 January 2019

[Dupin v. France \(n° 2282/17\)](#)

The applicant is a French national who was born in 1975 and lives in Nantes (France).

The case concerns the right to education of autistic children, and more specifically the right to attend an ordinary school.

Ms Dupin is the mother of E., an autistic child born on 26 September 2002. She is divorced and shares parental authority with the child's father. Since 2009 the father's home has been decided as the child's habitual place of residence. In April 2011 the applicant lodged with the Commission for the rights and autonomy of disabled persons (CDAPH), for Ille-et-Vilaine, a request for schooling and referral to a class for school integration (CLIS) with support from the Special Education and Home Care Service (SESSAD). In August 2011 that request was rejected. The CDAPH recommended referral to a medical and educational institution (IME) and, while waiting for a place to become vacant, care as a hospital outpatient.

In September 2011 Ms Dupin appealed against that decision before the Disability Claims Tribunal of Rennes. In July 2012 the expert appointed by the Tribunal took the view that both integration into a CLIS and admission to an IME were possible, but that either of those options meant that the schooling would have to be tailored to an autistic child. In August 2012 the Tribunal ruled that E.'s condition justified referral to an IME for the period from August 2011 to July 2014 with support from a special needs assistant during school hours and tailored teaching methods.

Ms Dupin appealed to the National Disablement and Employers' Liability Insurance Contribution Rates Appeal Tribunal (CNITAAT). In April 2014 the Tribunal upheld the judgment.

The applicant appealed on points of law. The judge rapporteur found that the appeal should be dismissed. He indicated, in particular, that the child's placement in an ordinary school had to be assessed concretely, depending on the child's capacities. He pointed out that, in the present case, it could not reasonably be argued that admission to an IME would be tantamount to denying a disabled child the right to an education. Lastly, he concluded that, in adopting the solution of referral to an IME, the CNITAAT had properly taken into consideration, in the child's interests, the experts' recommendations. In July 2016 the Court of Cassation, following the rapporteur's opinion, dismissed the appeal.

Relying on Article 2 of Protocol No. 1 (right to education) the applicant complains that the domestic courts refused to allow her child to attend an ordinary school. Also relying on that Article in combination with Article 14, she argues that the State failed to fulfil its positive obligation to take the necessary measures for disabled children, and that the lack of education in itself constituted discrimination within the meaning of Article 14 taken together with Article 2 of Protocol No. 1. Lastly, relying on Article 14 with Article 1 of Protocol No. 1 (protection of property), the applicant complains about the insufficiency of the specific resources earmarked by the State for autistic children.

Demjanjuk v. Germany (no. 24247/15)

The applicants, Vera Demjanjuk and John Demjanjuk, are two American nationals who were born in 1925 and 1965 respectively and live in Ohio (United States). The first applicant is the widow and the second applicant is the son of the late John Demjanjuk.

The case concerns the domestic courts' decision not to reimburse the accused's necessary expenses although proceedings were discontinued.

In May 2011 the Munich Regional Court II, after 91 days of trial, convicted the late John Demjanjuk on 16 counts as an accessory to the murder of at least 28,060 persons. It found it established that he had, in his capacity as a guard in the Sobibór extermination camp, aided and abetted the systematic murder of people who had been deported to the camp in convoys between March and September 1943. It sentenced him to a total of five years' imprisonment for these crimes.

Both the accused and the public prosecutor filed appeals on points of law with the Federal Court of Justice. John Demjanjuk died on 17 March 2012, by which time the Federal Court of Justice had not yet received the case file. In April 2012 the Regional Court discontinued the proceedings owing to Mr Demjanjuk's death. It ruled in the same decision that the accused's necessary expenses were not to be borne by the State.

The Munich Court of Appeal dismissed an immediate appeal against that decision in October 2012 owing to a lack of standing and rejected a request to be heard (*Anhörungsruhe*). The Federal Constitutional Court declined to consider a constitutional complaint by the applicants in December 2014.

Relying on Article 6 § 2 (presumption of innocence), the applicants complain that the of the Regional Court's decision not to reimburse the necessary expenses of the late John Demjanjuk in connection with the discontinuation of the criminal proceedings against him violated the presumption of innocence. Under Article 6 § 1 (access to court), they allege a violation of their right of access to a court as a result of the Munich Court of Appeal's decision to dismiss their appeals against the decision of April 2012 as inadmissible owing to a lack of standing.

Johanna Fröhlich v. Germany (no. 16741/16)

The applicant, Johanna Fröhlich, is a German national who was born in 1976 and lives in Buseck (Germany).

The case concerns the length of civil proceedings with regard to a property in a shared complex that Ms Fröhlich had purchased in 2003.

In June 2007 Ms Fröhlich instigated proceedings against the property developer seeking compensation (roughly 17,000 Euros) for alleged defects in her residential unit which had led to damp and mould on the walls. The proceedings resulted in a friendly settlement in October 2012.

In the meantime, Ms Fröhlich lodged a complaint with the Court of Appeal seeking compensation for the excessive length of the proceedings she had brought against the property developer. The Court of Appeal rejected her complaint in January 2013. It found that, while there had been some shortcomings in the way the Regional Court had given instructions to an expert appointed to write a report on the property, the case had been complicated, and the applicant herself had repeatedly lodged applications, objections and appeals throughout the proceedings. It therefore ruled that, overall, the length of the proceedings had not been unreasonable.

All her further appeals were rejected by the domestic courts.

Relying on Article 6 § 1 (right to a fair hearing within a reasonable time) Ms Fröhlich complains about the excessive length of the proceedings.

[Cordella and Others v. Italy \(nos. 54414/13 and 54264/15\)](#)

The applicants (52 individuals for application 54414/13 and 128 for application 54264/15) live or have lived in the municipality of Taranto or in neighbouring areas.

The case concerns complaints about the effects of emissions from the Ilva steelworks in Taranto and about the relative ineffectiveness of the related legal proceedings.

Ilva's establishment in Taranto is the largest industrial steelworks complex in Europe. It covers an area of 1,500 hectares and has about 11,000 employees. The impact of plant emissions on the environment and on the health of the local population has given rise to several alarming scientific reports.

On 30 November 1990 the Council of Ministers identified "high environmental risk" municipalities (including Taranto) and asked the Ministry of the Environment to introduce a decontamination plan for the sanitisation of the areas concerned.

From the end of 2012 onwards, the government adopted a number of texts, among them the so-called "salva-Ilva" Legislative Decrees concerning the activity of the company Ilva. In accordance with a decree of the President of the Council of Ministers of 29 September 2017, the deadline for implementing the measures provided for in the environmental plan was extended to August 2023.

In the context of an action for the annulment and stay of execution of this decree, the region of Apulia and the municipality of Taranto complained to the Administrative Court about the consequences, for the environment and for people's health, of the further extension of time for the implementation of the environmental measures. A question on the issue of constitutionality was also referred. The administrative proceedings are still pending.

Various criminal proceedings were brought against the management of Ilva for serious ecological harm, the poisoning of food substances, failure to prevent accidents in the workplace, the degradation of public property, the emission of pollutants and air pollution. Some of these proceedings culminated in convictions in 2002, 2005 and 2007. Among other things, the Court of Cassation found against the management of the Ilva factory in Taranto for the offences of air pollution, the dumping of hazardous materials and the emission of particles. It noted that particle production had continued despite numerous agreements with the local authorities in 2003 and 2004.

In a judgment of 31 March 2011 the CJEU found that Italy had failed to fulfil its obligations under Directive 2008/1 EC of the European Parliament and of the Council concerning integrated pollution prevention and control. In the context of an infringement procedure against Italy, opened on 16 October 2014, the European Commission issued a reasoned opinion asking the Italian authorities to remedy the serious pollution problems observed. It noted that Italy had failed to fulfil its obligations to guarantee that the steelworks complied with the Industrial Emissions Directive.

Relying on Articles 2 (right to life) and 8 (right to respect for private life), the applicants complain of a violation of the rights secured to them by these Articles.

[Knox v. Italy \(no. 76577/13\)](#)

The applicant, Amanda Marie Knox, was born in 1987 and lives in Seattle (USA).

The case concerns the applicant's conviction and sentence to three years' imprisonment for malicious accusation, in the context of criminal proceedings concerning the murder of her flatmate.

At the time, Ms Knox was 20 years old and had been in Perugia for about two months as part of her studies. She had found a temporary job in a pub run by D.L. She had been dating R.S., her boyfriend, for two weeks. On 2 November 2007, at approximately 12.30 p.m., the police went to the applicant's flat and found Ms Knox there together with R.S., who had called the police to say that he had found

a broken window and traces of blood in his girlfriend's flat. The police forced open the door of the bedroom of the flatmate, M.K., a British student on a university exchange, and discovered her body. The young woman's throat had been cut and signs of sexual violence were apparent.

On 6 November 2007 the public prosecutor ordered the arrest of Ms Knox, R.S. and D.L., charging them with sexual assault and murder.

On 14 May 2008 Ms Knox was charged with making a malicious accusation against D.L. The Assize Court found that Ms Knox had accused D.L. of her own accord while being fully aware of his innocence. In the court's view, the applicant had sought thereby to direct the investigators away from her own responsibility and that of R.S.

Ms Knox appealed. She alleged that a combination of psychological pressure, exhaustion and ignorance both of the procedures and of her rights had driven her to make a statement that was at odds with reality. In her submission, she had not been able to recall or to assess the facts.

On 3 October 2011 the Perugia Court of Appeal acquitted the applicant and R.S. on the more serious charges, while upholding the conviction for malicious accusation. After three years in custody, Ms Knox was released and left Italy for the United States.

Ms Knox appealed on points of law. In her view, the material element of the offence of malicious accusation was lacking in the case. The Court of Cassation quashed the acquittal and referred the case back to the Assize Court of Appeal. That court sentenced Ms Knox to a prison term of 28 years and six months for complicity in sexual assault and murder, and a further term of three years for malicious accusation. Ms Knox appealed on points of law. The Court of Cassation acquitted Ms Knox and R.S. on the charges of murder and sexual assault on the grounds that the "impugned charges were not made out".

The Court of Cassation observed that the conviction for malicious accusation had already become final and that the sentence had been a prison term of three years. Further criminal proceedings were brought against Ms Knox on another count of malicious accusation: she had accused the police officers who interviewed her, among others, of violence and threats against her. She was acquitted on that charge. On 16 December 2010 the Court of Cassation concluded that R.G. had been the perpetrator of the murder and sexual assault. He was sentenced to sixteen years' imprisonment.

Relying on Article 6 §§ 1 and 3 (c) (right to a fair hearing / right to legal assistance), the applicant alleges that she was not assisted by a lawyer during the interviews of 6 November 2007. She complains that the proceedings were unfair. Relying on Article 6 §§ 1 and 3 (a) (right to be informed promptly of the accusation), she submits that she was not informed promptly, in a language she understood, of the nature and cause of the accusations against her. Relying on Article 6 §§ 1 and 3 (e) (right to the assistance of an interpreter), she complains that she was not provided with a professional or independent interpreter during her police interviews of 6 November 2007 and that the police employee who assisted her had played a role of "mediator", encouraging her to imagine hypothetical scenarios.

Relying on Articles 3 (prohibition of torture and inhuman or degrading treatment) and 8 (right to respect for private and family life), Ms Knox complains that she suffered ill-treatment during a police interview of 6 November 2007. She says she was slapped on the head twice, was subjected to extreme psychological pressure and forced to speak at a point where she was incapable of showing discernment or willpower.

[Catt v. the United Kingdom \(no. 43514/15\)](#)

The applicant, John Oldroyd Catt, is a British national born in 1925 who lives in Brighton (UK).

The case concerns Mr Catt's complaint about the police collecting and retaining his personal data.

Mr Catt, a peace movement activist and regular attendee at demonstrations who has never been convicted of any offence, found in 2010 that the police had collected and retained data about him in a police database. The data entries were included in information reports about other individuals or particular events and mentioned him incidentally, typically recording his name, presence, date of birth, address, and sometimes his appearance. The reports mostly concerned protests he had attended against the local factory of a US arms company, but also involved other events and demonstrations. They largely related to the period March 2005 to October 2009.

He asked for entries in the database which mentioned him to be deleted, but the police refused. In judicial review proceedings the Supreme Court ultimately held by four votes to one in March 2015 that retaining the data had been in accordance with the law and proportionate.

Relying on Article 8 (right to respect for private and family life, the home, and the correspondence), Mr Catt complains about the police's retention of his personal data.

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Ghulyan v. Armenia (no. 35443/13) - jud
Scholz AG v. Armenia (no. 16528/10) - jud
Depelsenaire v. Belgium (no. 25021/13)
Depraetere v. Belgium (no. 52691/13)
Hodak v. Croatia (no. 5946/17)
Miše v. Croatia (no. 7291/15)
Kedidah v. France (no. 19954/17)
Breidenbach v. Germany (no. 70410/16)
Dokos and Others v. Greece (no. 56202/12)
Karaiskaki and Others v. Greece (no. 35075/12)
Nestoropoulos and Nestoropoulou v. Greece (no. 50738/11)
Czarnecki v. Poland (no. 54440/12)
Gajos and Others v. Poland (no. 21667/13 and 50 other applications)
German v. Poland (no. 18720/13)
Grzešków v. Poland (no. 19170/15)
Jurgielewicz v. Poland (no. 3222/16)
Nakoneczny v. Poland (no. 47762/12)
Szopa and Others v. Poland (nos. 63624/09, 29233/12, 51416/16, and 66916/17)
Wasik v. Poland (no. 37309/10)
Zych and Others v. Poland (no. 32267/13 and 74 other applications)
Dulova and Zykin v. Russia (nos. 30417/05 and 31768/05)
Lvov v. Russia (no. 53257/12)
Sokolov and Others v. Russia (nos. 60123/10, 61877/10, 71574/10, 73033/10, 1093/11, 1111/11, 12601/11, 14030/11, 16036/11, 25798/11, 26088/11, 36038/11, 74784/11, 74794/11, 75911/11, and 76399/11)
Pešić v. Serbia (no. 82070/17)
C. v. 'the former Yugoslav Republic of Macedonia' (no. 36303/10)
Džabirov v. 'the former Yugoslav Republic of Macedonia' (no. 75328/12)
Kuzmanovik v. 'the former Yugoslav Republic of Macedonia' (no. 72408/14)
Vasilevski v. 'the former Yugoslav Republic of Macedonia' (no. 52351/14)
Acer and Others v. Turkey (nos. 43437/09, 54920/09, and 58376/09)
Cavlanlar and Others v. Turkey (no. 11716/10)

Çelik v. Turkey (no. 78648/16)
Cerny v. Turkey (no. 11379/16)
Işıldak v. Turkey (no. 44052/11)
Kilinç and Others v. Turkey (no. 54768/11)
Oğur v. Turkey (no. 55099/12)
Özoğlu v. Turkey (no. 29731/09)
Şalvan v. Turkey (no. 47322/10)
Sarı v. Turkey (no. 22134/11)
Şedal and Others v. Turkey (no. 40773/12)
Şeker and Others v. Turkey (no. 58175/10)
Sevim and Others v. Turkey (no. 3685/10)
Tebiş v. Turkey (no. 75646/12)

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The European Court of Human Rights was set up in Strasbourg by the Council of Europe Member States in 1959 to deal with alleged violations of the 1950 European Convention on Human Rights.